

9:00 A.M.

Calendar Line # 1

Case Name Capital One Bank (USA), N.A. vs Juan Campos

Case No. 17CV315304

Motion to Set Aside Default Judgment

I. BACKGROUND

This collection case stems from Defendant Juan Campos (“Campos”) owing Plaintiff Capital One Bank (USA) N.A. (the “Bank”) money lent in the principal amount of \$3,160.22. Plaintiff Bank filed a Complaint on or around August 24, 2017. No Answer was filed. Plaintiff filed a request for default judgment that was clerk approved on January 25, 2018 in favor of the Bank against Defendant Campos for \$3,455.22, compromised of \$3,160.22 in damages and \$295.00 in costs. (Default Judgment; Memorandum of Points and Authorities, p.1).

On December 29, 2025, Plaintiff filed this present motion to set aside and vacate default and default judgment and dismiss the action with prejudice under Code of Civil Procedure section 473. The motion was accompanied by a proof of service indicating mail service on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, notice of motion (totaling 2 pages); memorandum of points and authorities (totaling 2 pages); notice of nonappearance (totaling 1 page); Declaration of Laura D’Anna (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

B. CODE OF CIVIL PROCEDURE SECTION 473.5

Code of Civil Procedure section 473.5(a) provides: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

III. ANALYSIS

Here, the Plaintiff filed this present motion to set aside and vacate the default and default judgment that was entered on January 25, 2018, which is—2,895 days or seven years, 11 months, and four days—after the entry of default. Based on this timeline, relief under Code of Civil Procedure section 473(b) is barred as the request for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions, supra*, 94 Cal.App.4th at 143). Based on this timeline, and the **extreme delay of nearly eight years passing** since the default judgment was entered to the time the motion was filed, the Court does not need to weigh the defendant’s submission of inadvertence, surprise, mistake, or excusable neglect.

Further, the Court lacks jurisdiction on the grounds that the Complaint was filed on August 24, 2017, which is 3,049 days, or 8 years, 4 months, and 5 days since the motion was filed.

Plaintiff seeks to dismiss the case with prejudice upon receiving notification that the defendant claimed fraud on the account. (Declaration of D’Anna ¶¶ 5 and 8). Plaintiff’s counsel, Laura D’Anna attests to reviewing and confirming the fraud claim. (*Id.*, at ¶6). However, Plaintiff’s counsel provides no details, specifically dates on when the defendant filed a fraud claim on his account, or when the plaintiff first learned of the fraud claim and confirmed the claim. There was no dismissal of the case without prejudice with the court retaining jurisdiction under section 664.6. There was no timely appeal. Thus, the default judgment is the formal judgment. Based on the totality of the circumstances, the excessive delay in pursuing relief and the age of the Complaint precludes this Court from granting relief. Plaintiff’s failure to seek diligent relief for **nearly eight years** precludes relief set forth under Code of Civil Procedure sections 473(b) or 473.5.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion to set aside and vacate the default judgment. The Court will prepare the Order.

Calendar Line # 3
Case Name Janae Scales et al vs Ford Motor Company et al
Case No. 24CV454891
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary adjudication against plaintiffs Janae Scales and Brandon Scales’ fifth cause of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> This action stems from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”) by plaintiffs Janae Scales and Brandon Scales (collectively, “Plaintiffs”) against defendants Ford Motor Company (“Ford”) and Gosch Ford Temecula. According to the Complaint, Plaintiff purchased a 2020 Ford Expedition under warranty on May 20, 2020 (“Subject Vehicle”). (Complaint, ¶ 7). Before Plaintiff purchased the Subject Vehicle, Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects that would cause hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (the “Transmission Defect”). (<i>Id.</i> at ¶ 24). Plaintiff alleges the following causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair. Ford filed the instant motion for summary adjudication on July 15, 2026. On June 17, 2026, the court granted Ford’s <i>ex parte</i> application to advance the hearing on Ford’s motion from January 12, 2027 to August 27, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)). “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850). “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (<i>Id.</i> at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (<i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 540). Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary